

HOUSE No. 2297

The Commonwealth of Massachusetts

PRESENTED BY:

Hannah Kane and James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting municipalities from unfunded mandates.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/7/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/21/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/19/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>1/27/2025</i>

HOUSE No. 2297

By Representatives Kane of Shrewsbury and Arciero of Westford, a petition (accompanied by bill, House, No. 2297) of Hannah Kane, James Arciero and others for legislation to require that fiscal notes be attached to legislation providing unfunded mandates on municipal governments. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2073 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting municipalities from unfunded mandates.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 3 of the General Laws is hereby amended by inserting after section 38B the
2 following section:-

3 Section 38B½.(a) For the purposes of this section, an unfunded mandate to a city or town
4 is one that imposes a cost on municipal governments as a result of legislation being considered
5 by the General Court, including, but not limited to the cost for the requisite staff necessary to
6 administer or implement the legislation.

7 (b) Joint committees of the general court and the committees on ways and means of
8 either branch thereof when referred bills that contain an unfunded mandate to municipalities

9 shall, prior to a favorable report of such bill include a fiscal note or study which clearly explains
10 any cost described in subsection (a).

11 (c) Notwithstanding any general or special law to the contrary, in the event that there is a
12 cost to any city or town regarding such legislation, the general court shall refrain from enacting
13 the legislation until such time as an appropriation satisfying said cost is provided by the general
14 court.